Defamation in Employment References State Law Chart: Overview

by Practical Law Labor & Employment

Maintained • **Alabama, Alaska, American Samoa, Arizona, Arkansas, California, Colorado, Connecticut, Delaware, District of Columbia, Florida, Georgia, Guam, Hawaii, Idaho, Illinois, Indiana, Iowa, Kansas, Kentucky, Louisiana, Maine, Maryland, Massachusetts, Michigan, Minnesota, Mississippi, Missouri, Montana, Nebraska, Nevada, New Hampshire, New Jersey, New Mexico, New York, North Carolina, North Dakota, Northern Mariana Islands, Ohio, Oklahoma, Oregon, Pennsylvania, Rhode Island, South Carolina, South Dakota, Tennessee, Texas, US Virgin Islands, Utah, Vermont, Virginia, Washington, West Virginia, Wisconsin, Wyoming**

A 50-state survey Chart providing the elements of a defamation claim, the statute of limitations applicable to defamation claims, and whether each state has a job reference immunity statute and qualified privilege defense for private employers. This Chart addresses state laws providing causes of action for defamation and immunities or privileges for employers providing job references to prospective or future employers.

Defamation claims frequently arise in the employment context when an employer is asked to provide a job reference about an employee or former employee and the employee takes issue with the content of the reference. A claim may also arise if:

- A supervisor makes negative statements about an employee in a performance evaluation or while disciplining the employee.
- An employee makes negative statements about the employer while employed or after a contentious separation.

Defamation is a communication (oral or written) that damages the reputation, character, or good name of another. Slander (spoken false statements) and libel (written false statements) are both forms of defamation. State law governs these causes of action and the requirements for making or defending a defamation claim generally vary from state to state.

This Chart provides the elements for a defamation claim by state and the **statute of limitations**. Where a state has a statutory definition for slander or libel, the citation to the statute is provided as well. The Chart also provides a list of job reference immunity statutes, if available in that state, and qualified privilege defenses. Job reference immunity statutes are designed to protect employers that provide references about former or current employees to a prospective employer.

In states where a job reference immunity statute is not available, employers may still be protected by a similar qualified privilege defense. However, an employer may forfeit this protection if there is evidence that it disclosed information:

- It knew or should have known was false.

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- It knew is materially misleading.
- In violation of the law.

For a general discussion about defamation claims in the employer-employee context, see Practice Note, Defamation Claims in Employment. For more information about state-specific job reference statutes, see Background Check Laws: State Q&A Tool.

State	Elements and Statute of Limitations (SOL) of a Defamation Claim	Job Reference Immunity Statutes and Qualified Privilege Defenses
Alabama	**Elements:** • A false and defamatory statement concerning the plaintiff. • An unprivileged communication of that statement to a third party. • Fault amounting at least to negligence. • Either actionability of the statement irrespective of special harm or the existence of special harm caused by the publication of the statement. (Ala. Code § 6-5-182; see also *Jackson v. WAFF, LLC*, 109 So. 3d 1123, 1126 (Ala. Civ. App. 2012).) **SOL:** Two years (Ala. Code § 6-2-38(k)).	**Job reference immunity statute:** Alabama does not have a job reference immunity statute. **Common law privilege:** Alabama recognizes a conditional privilege that protects publications made by a previous employer to a prospective employer regarding an employee if the statement is made in good faith and without malice (*Clark v. America's First Credit Union*, 585 So. 2d 1367, 1370 (Ala. 1991)).
Alaska	**Elements:** • A false and defamatory statement. • An unprivileged publication to a third party.	**Job reference immunity statute:** Alaska Stat. Ann. § 09.65.160. An employer that discloses information about an employee or former employee's job performance to a prospective employer at the request of the prospective employer or employee

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	• Fault amounting at least to negligence. • Either per se actionability or special damages. (*State v. Carpenter*, 171 P.3d 41, 51 (Alaska 2007).) **SOL:** Two years (Alaska Stat. Ann. § 09.10.070(a)).	is presumed to be acting in good faith and is not liable unless lack of good faith is shown by a **preponderance of the evidence** (Alaska Stat. Ann. § 09.65.160). Alaska also provides a qualified privilege for employers from liability for defamation in connection with drug or alcohol testing if the conditions specified in the statute are satisfied (Alaska Stat. Ann. § 23.10.610). **Common law privilege:** Alaska also recognizes "a conditional privilege based upon the employment relationship absent a showing of abuse," in accordance with the Restatement (Second) of Torts § 595 (*Schneider v. Pay'N Save Corp.*, 723 P.2d 619, 624 (Alaska 1986)).

Arizona	**Elements:**
	
	• Publication of a false and defamatory communication concerning a private person or a public official or public figure in relation to a purely private matter.
	
	• The speaker either:
	  • knows the statement is false and defames the other;
	  • acts in reckless disregard of the truth; or
	  • acts negligently in failing to ascertain the truth.
		Job reference immunity statute: A.R.S. § 23-1361.
		
		Former employers may provide requesting employers with "information concerning a person's education, training, experience, qualifications and job performance to be used for the purpose of evaluating the person for employment." A copy of any written communication "must be sent by the employer providing the information to the former employee's last known address." (A.R.S. § 23-1361(B).)
		
		"[A]n employer who in good faith provides information requested by a prospective employer about the reason for termination of a former employee or about the job performance, professional conduct or evaluation of a current or former employee" is immune from civil liability for the disclosure

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	(*Desert Palm Surgical Grp., P.L.C. v. Petta*, 343 P.3d 438, 449 (Ariz. Ct. App. 2015).) **SOL:** One year (A.R.S. § 12-541(1)).	or consequences of the disclosure (A.R.S. § 23-1361(C)).
Arkansas	**Elements:** • The defamatory nature of the statement of fact. • The statement's identification of or reference to the plaintiff. • Publication of the statement by the defendant. • The defendant's fault in the publication. • The statement's falsity. • Damages. (*Addington v. Wal-Mart Stores, Inc.*, 105 S.W.3d 369, 379 (Ark. App. 2003).) **SOL:** • One year for slander (Ark. Code Ann. § 16-56-104(3)). • Three years for libel (Ark. Code Ann. § 16-56-105(5)).	**Job reference immunity statute:** Ark. Code Ann. § 11-3-204. The statute describes the types of information an employer can disclose to a prospective employer about a current or former employee upon receipt of written consent from the employee. The employer is presumed to be acting in good faith and is immune from civil liability for the disclosure or consequences of disclosure unless the presumption of good faith is rebutted. The presumption may be rebutted by a showing both that: • The information was false. • The employer knew the information was false or acted with malice or reckless disregard for the truth. (Ark. Code Ann. § 11-3-204(a).) The immunity does not apply when an employer or prospective employer discriminates or retaliates against an employee because the employee has exercised or is believed to have exercised any statutory right or taken an action encouraged by the public policy of the state. (Ark. Code Ann. § 11-3-204(e).) **Common law privilege:** Arkansas also recognizes a qualified privilege for statements about

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		employees "made in good faith upon any subject matter in which the communicator has an interest or in reference to which he has a duty, and to a person having a corresponding interest or duty." The privilege is lost if one of the following occurs: • It is abused by excessive publication. • A statement is made with malice. • A statement is made with a lack of grounds to believe in its truthfulness. (*Addington*, 105 S.W.3d at 378.)
California	**Elements:** • The intentional publication of a statement of fact that is false. • The publication of the statement is unprivileged. • The statement has a natural tendency to injure or causes special damage. (*Makaeff v. Trump Univ., LLC*, 715 F.3d 254, 264 (9th Cir. 2013).) **SOL:** One year (Cal. Civ. Proc. Code § 340(c)).	**Job reference immunity statute:** Cal. Civ. Code § 47(c). A communication by a current or former employer "concerning the job performance or qualifications of an applicant for employment, based upon credible evidence, made without malice" to, and at the request of, someone whom the employer reasonably believes is a prospective employer" is protected by privileged. (Cal. Civ. Code § 47(c).) California law prohibits any person from preventing or attempting to prevent a former employee from obtaining employment by any misrepresentation. (Cal. Lab. Code § 1050). However, the statute does not bar an employer from providing upon request a truthful statement concerning the reason for the discharge of an employee or why an employee voluntarily left the service of the employer (Cal. Lab. Code § 1053).

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Colorado	**Elements:**
	
	• A defamatory statement:
	  • concerning another; and
	  • published to a third party.
	
	• Fault amounting to at least negligence on the part of the publisher.
	
	• Either actionability of the statement irrespective of special damages or the existence of special damages to the plaintiff caused by publication.
	
	(*Brokers' Choice of Am., Inc. v. NBC Universal, Inc.*, 757 F.3d 1125, 1136 (10th Cir. 2014).)
	
	SOL: One year (Colo. Rev. Stat. Ann. § 13-80-103(1)(a)).
		Job reference immunity statute: Colo. Rev. Stat. Ann. § 8-2-114(3).
		
		An employer is protected from civil liability if it provides a job performance reference regarding an employee or former employee to a prospective employer, unless both:
		
		• The information was false.
		
		• The employer knew or reasonably should have known that the information was false.
		
		(Colo. Rev. Stat. Ann. § 8-2-114(3).)
		
		Common law privilege:
		
		Colorado law also provides a qualified privilege "between persons who share a common interest in the subject matter of the alleged defamatory statement." The privilege applies where an employer shares the reason for an employee's discharge with other employees. (*Patane v. Broadmoor Hotel, Inc.*, 708 P.2d 473, 475 (Colo. App. 1985).)

Connecticut	**Elements:**
	
	• The defendant published a defamatory statement.
	
	• The defamatory statement;
	  • identified the plaintiff to a third person; and
	  • was published to a third person.
		Job reference immunity statute: Conn. Gen. Stat. Ann. § 31-51.
		
		Under Connecticut's blacklisting statute, an employer may not conspire in any manner to prevent an employee from securing employment but the law does not prohibit any employer "from giving a truthful statement of any facts concerning a present or former employee" at the request of the employee or the prospective employer (Conn. Gen. Stat. Ann. § 31-51).

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	• The plaintiff's reputation suffered injury resulting from the statement. (*Thibodeau v. Am. Baptist Churches of Conn.*, 994 A.2d 212, 222 (Conn. App. Ct. 2010).) **SOL:** Two years (Conn. Gen. Stat. Ann. § 52-597).	The blacklisting statute "requires proof that an employer acted with an improper motive, namely, the intent to prevent an employee from securing employment" (*Miron v. Univ. of New Haven Police Dep't*, 931 A.2d 847, 856 (Conn. 2007)). **Common law privilege:** Connecticut also recognizes a "qualified privilege for the employment references of current or former employers that were solicited with the employee's consent." The qualified privilege is destroyed when one acts with malice or improper motives. (*Miron*, 931 A.2d at 854-56). "Communications between managers regarding the review of an employee's job performance and the preparation of documents regarding an employee's termination are protected by a qualified privilege" (*Gaudio v. Griffin Health Servs. Corp.*, 733 A.2d 197, 211 (Conn. 1999)). However, the privilege is lost if the employer abused the privilege by acting with malice by publishing the statement "even though [the employer] doubted the statement's veracity" (*Gaudio*, 733 A.2d at 211).

Delaware	**Elements:**
	
	• A communication that is:
	  • defamatory;
	  • published;
	  • referring to the plaintiff; and
		Job reference immunity statute: 19 Del C. § 709.
		
		An employer that "discloses information about a current or former employee's job performance to a prospective employer is presumed to be acting in good faith; and unless lack of good faith is shown, is immune from civil liability for such disclosure or its consequences" (19 Del C. § 709(a)).
		
		The presumption of good faith may be rebutted by showing that the

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	• understood by a third party to be defamatory. • Injury. (*Tri-State Energy Sols., LLP v. KVAR Energy Sav. Inc.*, 845 F. Supp. 2d 615, 619 (D. Del. 2012).) **SOL:** Two years (10 Del C. § 8119; *Smiley v. Daimler Chrysler*, 538 F. Supp. 2d 711, 716 (D. Del. 2008)).	information disclosed was one of the following: • Knowingly false. • Deliberately misleading or given with malicious purpose. • Disclosed in violation of a nondisclosure agreement. • Confidential under applicable federal, state, or local statute, rule, or regulation. (19 Del C. § 709(a).) **Common law privilege:** Delaware also recognizes a "qualified privilege extending to communications made between persons sharing a common interest for the protection of which the allegedly defamatory statements are made . . . This qualified privilege is particularly germane to the employer-employee relationship" (*Battista v. Chrysler Corp.*, 454 A.2d 286, 290-91 (Del. Super. 1982)). The conditional privilege may be forfeited if it is abused by one of the following: • Excessive or improper publication. • Publication for a purpose not embraced within the privilege. • Making a statement which the speaker knows is false.

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		(*Battista*, 454 A.2d 286 at 291.)
District of Columbia (DC)	**Elements:** • The defendant made a false and defamatory statement concerning the plaintiff. • The defendant published the statement without privilege to a third party. • The defendant's fault in publishing the statement amounted to at least negligence. • The statement was either actionable as a matter of law irrespective of special harm or that its publication caused the plaintiff special harm. (*Mattiaccio v. DHA Grp., Inc.*, 87 F. Supp. 3d 169, 183 (D. D.C. 2015).) **SOL:** One year (D.C. Code § 12-301(4)).	**Job reference immunity statute:** DC does not have a job reference immunity statute. **Common law privilege:** DC recognizes a qualified common interest privilege where an employer's statement about its employee was: • Made in good faith. • The party communicating has an interest in the subject, or has, or honestly believes they have, a duty to a person having a corresponding interest or duty. • To a person who has such a corresponding interest. (*Millstein v. Henske*, 722 A.2d 850, 856 (D.C. App. 1999).) However, the employer loses the benefit of the privilege where it acts maliciously, "without just cause or excuse, with such a conscious indifference or reckless disregard as to its results or effects upon the rights or feelings of others as to constitute ill will" (*Millstein*, 722 A.2d at 856-57).
Florida	**Elements:** • The defendant published a false statement. • The statement was about the plaintiff.	**Job reference immunity statute:** § 768.095, Fla. Stat. An employer that "discloses information about a former or current employee to a prospective employer . . . upon request of the prospective employer or of the former or current employee is immune from

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	• The statement was made to a third party. • The falsity of the statement caused injury to the plaintiff. (*Valencia v. Citibank Intern*, 728 So.2d 330 (Fla. 1999).) **SOL:** Two years (Fla. Stat. § 95.11(4)(h)).	civil liability for such disclosure or its consequences unless it is shown by **clear and convincing evidence** that the information disclosed . . . was knowingly false or violated any civil right of the current or former employee" under state civil rights laws. (§ 768.095, Fla. Stat.) **Common law privilege:** Florida recognizes a qualified privilege for employers "communicating information about a former employee to a prospective employer." An employer may communicate its "honest opinions about the employee's job performance and any information which is relevant to the inquiry being made." However, the employer must "act reasonably and prudently in doing so" and "cannot deliberately lie about the employee's conduct." (*Kellums v. Freight Sales Centers, Inc.*, 467 So. 2d 816, 817 (Fla. Dist. Ct. App. 1985).)
Georgia	**Slander:** O.C.G.A. § 51-5-4 **Libel:** O.C.G.A. § 51-5-1 **Elements:** • A false and defamatory statement concerning the plaintiff. • An unprivileged communication to a third party. • Fault by the defendant amounting at least to negligence. • Special harm or the actionability of the statement irrespective of special harm.	**Job reference immunity statute:** O.C.G.A. § 34-1-4. An employer is presumed to be acting in good faith when, at the request of a prospective employer or current or former employee, the employer discloses factual information to the prospective employer concerning the employee's: • Job performance. • Violation of state law. • Ability or lack of ability to carry out the duties of the job.

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	(*Infinite Energy, Inc. v. Pardue*, 713 S.E.2d 456, 460 (Ga. App. 2011).) **SOL:** One year (O.C.G.A. § 9-3-33).	The employer is presumed to be "acting in good faith unless lack of good faith is shown by a preponderance of the evidence, unless the information was disclosed in violation of a nondisclosure agreement or the information disclosed was otherwise considered confidential according to applicable federal, state, or local statute, rule, or regulation." (O.C.G.A. § 34-1-4(b).) **Common law privilege:** Georgia also recognizes a qualified privilege that "shields statements made concerning a current or former employee by a current or former employer to one, such as a prospective employer, who has a legitimate interest in such information." The privilege can be overcome by evidence of actual malice. "The plaintiff has the burden of proving the existence of actual malice." (*Kenney v. Gilmore*, 195 Ga. App. 407, 408 (1990).)
Hawaii	**Elements:** • A false and defamatory statement concerning another. • An unprivileged publication to a third party. • Fault amounting at least to negligence on the part of the publisher (actual malice where the plaintiff is a public figure). • Either actionability of the statement irrespective of special harm or the existence of special harm caused by the publication.	**Job reference immunity statute:** HRS § 663-1.95. An "employer that provides to a prospective employer information or opinion about a current or former employee's job performance is presumed to be acting in good faith and shall have a qualified immunity from civil liability for disclosing the information and for the consequences of the disclosure." The presumption can be lost if the employee shows by a preponderance of evidence that the employer's statements were knowingly false or knowingly misleading. (HRS § 663-1.95.) **Common law privilege:**

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	(*Gonsalves v. Nissan Motor Corp. in Hawaii, Ltd.*, 58 P.3d 1196, 1218 (Haw. 2002).) **SOL:** Two years (HRS § 657-4).	Hawaii also recognizes a qualified privilege for any statement by an employer about its employees when "the author of the defamatory statement reasonably acts in the discharge of some public or private duty, legal, moral or social, and where the publication concerns [a] subject matter in which the author has an interest and the recipients of the publication a corresponding interest or duty." However, the qualified privilege is conditional and lost if abused. A qualified privilege may be abused when the speaker does not reasonably believe the statement is necessary to protect the particular interest for which the privilege is given. (*Uema v. Nippon Express Hawaii, Inc.*, 26 F. Supp. 2d 1241, 1248-49 (D. Haw. 1998).)
Idaho	**Libel:** Idaho Code § 18-4801 **Elements:** • Communication concerning the plaintiff to others. • The information was defamatory. • The plaintiff was damaged because of the communication. (*Clark v. Spokesman-Review*, 163 P.3d 216, 219 (Idaho 2007).) **SOL:** Two years (Idaho Code § 5-219(5)).	**Job reference immunity statute:** Idaho Code § 44-201(2). An employer that "in good faith provides information about the job performance, professional conduct, or evaluation of a former or current employee to a prospective employer" at the request of the prospective employer or the employee, may not be held civilly liable for the disclosure or the consequences of providing the information. There is a rebuttable presumption that such an employer is acting in good faith, which is rebuttable only on a showing by "clear and convincing evidence that the employer disclosed the information with actual malice or with deliberate intent to mislead." (Idaho Code § 44-201(2).) **Common law privilege:**

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		Idaho recognizes a qualified privilege that protects the publisher of defamatory material from liability if the publication is made to someone with a common interest, which may include an employer's statements to a prospective employer about an employee's dependability. However, this privilege may be lost through abuse by the publication of the defamatory material with express malice. (*Cerda v. Saint Alphonsus Reg'l Med. Ctr.*, 2007 WL 2384381, at *6 (D. Idaho 2007), *vacated in part*, 2008 WL 11472178 (D. Idaho 2008).)
Illinois	**Elements:** • The defendant made a false statement about the plaintiff. • The defendant made an unprivileged publication of that statement to a third party. • The publication caused damages. (*Rupcich v. United Food & Commercial Workers Int'l Union Local 881*, 69 F. Supp. 3d 889, 903 (N.D. Ill. 2014), *rev'd on other grounds*, 833 F.3d 847 (7th Cir. 2016).) **SOL:** One year (735 ILCS 5/13-201).	**Job reference statute:** 745 ILCS 46/10. An employer that upon inquiry by a prospective employer, provides truthful information, or information that it believes in good faith is truthful, about a current or former employee's job performance is presumed to be acting in good faith and is immune from civil liability. The presumption may be lost if the employer's statements were "knowingly false or in violation of a civil right of the employee or former employee." (745 ILCS 46/10.) **Common law privilege:** Illinois also recognizes a qualified privilege for defamatory statements made about an employee by their coworkers and management. "A privilege exists when: (1) a statement is made in good faith by the defendant; (2) the defendant has an interest or duty to uphold; (3) the statement is limited in scope to that purpose; (4) it is made in a proper occasion; and (5) the statement is published in a

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		proper manner to the proper parties." However, "even if a privilege exists, a plaintiff may overcome it by showing that it was abused." (*Achanazar v. Ravenswood Hosp.*, 326 Ill. App. 3d 944, 948-49 (2001).)
Indiana	**Elements:** • A communication with defamatory imputation. • Falsity of the statement. • Malice. • Publication. • Damages. (*Martino v. W. & S. Fin. Grp.*, 715 F.3d 195, 206 (7th Cir. 2013).) **SOL:** Two years (Ind. Code § 34-11-2-1; *ServiceMaster Diversified Health Servs., L.P. v. Wiley*, 790 N.E.2d 1056, 1059 (Ind. Ct. App. 2003)).	**Job reference immunity statute:** Ind. Code § 22-5-3-1. "[A]n employer that discloses information about a current or former employee is immune from civil liability … unless it is proven by a preponderance of the evidence that the information disclosed was known to be false at the time the disclosure was made" (Ind. Code § 22-5-3-1). **Common law privilege:** Indiana also "recognizes a qualified privilege for communications between former and prospective employers" to permit former employers "to give sincere yet critical responses to requests for an appraisal of a prospective employee's qualifications without fear of a defamation action" (*Trail v. Boys & Girls Clubs of Nw. Indiana*, 845 N.E.2d 130, 137 (Ind. 2006)). However, an employer's privileged statement may lose its privilege where the statement was: • Primarily motivated by ill will. • Excessively published. • Made without belief or grounds for belief in its truth. (*Chambers v. Am. Trans Air, Inc.*, 577 N.E.2d 612, 616 (Ind. Ct. App. 1991).)

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Iowa	**Elements:**
	
	• Defendant made a false statement about the plaintiff.
	
	• The statement was made with malice.
	
	• The statement was communicated to somebody other than the plaintiff.
	
	• The statement tended to:
	  • injure the plaintiff's reputation;
	  • expose the plaintiff to public hatred, contempt, or ridicule; or
	  • injured the plaintiff in their efforts to maintain their business.
	
	• Damage.
	
	• The amount of damage.
	
	If the plaintiff can demonstrate that the defendant's statements are defamatory per se, however, the plaintiff may proceed without proof of malice, falsity, or damage.
	
	(*Mills v. Iowa*, 924 F. Supp. 2d 1016, 1029-30 (S.D. Iowa 2013).)
	
	SOL: Two years (Iowa Code Ann. § 614.1(2)).
		Job reference immunity statute: Iowa Code Ann. § 91B.2.
		
		An employer that "upon the request or authorization of a current or former employee or the request made by a person who in good faith is believed to be a representative of a prospective employer, provides work-related information about a current or former employee, is immune from civil liability unless the employer . . . acted unreasonably in providing the work-related information" (Iowa Code Ann. § 91B.2(1)).
		
		The employer acts unreasonably if one of the following is true about the information:
		
		• It violates a civil right of the employee.
		
		• It is provided knowingly to a person who has no legitimate or common interest in receiving the information.
		
		• It is not relevant to the inquiry being made, provided with malice, or provided without a good faith belief that it is true.
		
		(Iowa Code Ann. § 91B.2(2).)
		
		Common law privilege:
		
		Iowa courts have noted that the "qualified privilege is the only effective means of preventing every termination decision from automatically becoming a case of defamation . . . it is in the public interest that information regarding an employee's discharge be readily available to the discharged employee and prospective employers,

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		and we are concerned that, unless a significant privilege is recognized by the courts, employers will decline to inform employees of reasons for discharges" (*Theisen v. Covenant Med. Ctr., Inc.*, 636 N.W.2d 74, 85 (Iowa 2001)). The privilege is lost if the employer acts with actual malice (*Theisen*, 636 N.W.2d at 85).
Kansas	**Elements:** • Defendant communicated false and defamatory words. • Defendant communicated the statements to a third person. • Plaintiff's reputation was injured as a result. (*Dominguez v. Davidson*, 974 P.2d 112, 117 (Kan. 1999).) **SOL:** One year (K.S.A. 60-514(a)).	**Job reference immunity statute:** K.S.A. 44-119a. Employers have absolute immunity for releasing certain information about employees, subject to the rules set out in the statute (K.S.A. 44-119a). **Common law privilege:** Kansas recognizes a qualified privilege regarding "business or employment communications made in good faith and between individuals with a corresponding interest or duty in the subject matter of the communication" (*Dominguez*, 974 P.2d at 117).
Kentucky	**Elements:** • Defamatory language. • About the plaintiff. • Publication to a third party. • Injury to the plaintiff's reputation. (*Foster v. Jennie Stuart Med. Ctr., Inc.*, 435 S.W.3d 629, 636 (Ky. App. 2013).) **SOL:** One year (KRS 413.140(1)(d)).	**Job reference immunity statute:** KRS 411.225. An employer that "provides information about the job performance, professional conduct, or evaluation of a former or current employee to a prospective employer of that employee, at the request of that employee or prospective employer, shall be immune from civil liability arising out of the disclosure" unless the employee shows that the employer disclosed information either:

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		• Knowing that it was false, with reckless disregard of whether it was true or false, or with intent to mislead the prospective employer. • That is an unlawful discriminatory practice under Kentucky law. (KRS 411.225.) **Common law privilege:** Kentucky common law recognizes that a communication in which a party has an interest, made to another having a corresponding interest, is privileged if made in good faith and without malice (*Baker v. Clark*, 218 S.W. 280, 285 (Ky. App. 1920)).
Louisiana	**Elements:** • A false and defamatory statement concerning another. • An unprivileged publication to a third party. • Fault. • Injury. (*Murungi v. Texas Guaranteed*, 693 F. Supp. 2d 597, 606 (E.D. La. 2010).) **SOL:** One year (La. Civ. Code Ann. art. 3492).	**Job reference immunity statute:** La. R.S. 23:291. "[A]ny employer that, upon request by a prospective employer or a current or former employee, provides accurate information about a current or former employee's job performance or reasons for separation shall be immune from civil liability and other consequences of such disclosure provided such employer is not acting in bad faith." The presumption is lost only if a preponderance of evidence shows that the information was knowingly false and deliberately misleading. (La. R.S. 23:291(A).) **Common law privilege:** Louisiana recognizes a qualified or conditional privilege for employers' statements about employees. "A conditional or qualified privilege exists

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		if the communication was made in good faith on a subject matter in which the speaker has an interest or duty and made to a person with a corresponding interest or duty. . . . Communications between appropriate persons within an employer's walls, concerning allegations of conduct by an employee that bears on the employer's interest, are subject to the qualified privilege if made in good faith." (*Bell v. Rogers*, 698 So.2d 749, 755 (La. App. 1997).) The privilege also covers an employer that discharges an employee after investigating suspected wrongdoing if third parties learn about the investigation (*Wright v. Dollar Gen. Corp.*, 602 So.2d 772, 775 (La. App. 1992)). "Good faith exists if the person making the statements had reasonable grounds for believing the statements were true and he honestly believed them to be true" (*Steed v. St. Paul's United Methodist Church*, 728 So.2d 931, 941 (La. App. 1999)).
Maine	**Elements:** • A false and defamatory statement concerning another. • An unprivileged publication to a third party. • Fault amounting at least to negligence on the part of the publisher. • Either actionability of the statement irrespective of special harm or the existence of special harm caused by the publication.	**Job reference immunity statute:** 26 M.R.S.A. § 598. An employer that "discloses information about a former employee's job performance or work record to a prospective employer is presumed to be acting in good faith and, unless lack of good faith is shown by clear and convincing evidence, is immune from civil liability for such disclosure or its consequences." Lack of good faith may be shown by evidence of "the knowing disclosure, with malicious intent, of false or deliberately misleading information." (26 M.R.S.A. § 598.) **Common law privilege:**

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	(*Cole v. Chandler*, 752 A.2d 1189, 1193 (Me. 2000).) **SOL:** Two years (14 M.R.S.A. § 753).	Maine's conditional privilege for an employer's statements "arises in settings where society has an interest in promoting free, but not absolutely unfettered, speech . . . . An occasion makes a publication conditionally privileged if the circumstances lead any one of several persons having a common interest in a particular subject matter correctly or reasonably to believe that there is information that the another sharing the common interest is entitled to know." The conditional privilege is lost if the employer either: • Knew the statement was false or recklessly disregarded its truth or falsity. • Acted entirely out of ill will towards the employee. (*Staples v. Bangor Hydro-Electric Co.*, 629 A.2d 601, 604 (Me. 1993).)
Maryland	**Elements:** • The defendant published a defamatory statement to a third person. • The statement was false. • The defendants were legally at fault for making statement. • The plaintiff suffered harm. (*Ali v. Giant Food LLC/Stop & Shop Supermarket Co., LLC*, 595 F. Supp. 2d 618, 622 (D. Md. 2009).)	**Job reference immunity statute:** Md. Code Ann., Cts. & Jud. Proc. § 5-423. An employer acting in good faith is not liable for disclosing any information about the job performance or the reason for termination of employment of an employee or former employee: • To a prospective employer of the employee or former employee at the request of the prospective employer, the employee, or former employee. • If requested or required by a federal, state, or industry

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	SOL: One year (Md. Code Ann., Cts. & Jud. Proc. § 5-105).	regulatory authority or if the information is disclosed in a report, filing, or other document required by law, rule, order, or regulation of the regulatory authority. (Md. Code Ann., Cts. & Jud. Proc. § 5-423(a).) An employer that discloses information as specified in the statute is presumed to be acting in good faith unless it is shown by clear and convincing evidence that the employer either: • Acted with actual malice toward the employee. • Intentionally or recklessly disclosed false information about the employee. (Md. Code Ann., Cts. & Jud. Proc. § 5-423(b).) **Common law privilege:** Maryland recognizes "the well settled privilege accorded to statements made within the context of the employer-employee relationship." It also recognizes a qualified privilege "which protect[s] a person when he publishes a statement in good faith and in furtherance of an interest . . . in sharing information with a recipient who justifiably is entitled to receive it." (*Happy 40, Inc. v. Miller*, 491 A.2d 1210, 1214 (Md. Ct. Spec. App. 1985).)
Massachusetts	**Elements:**	**Job reference immunity statute:** M.G.L. c. 111, § 72L1/2.

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	• The defendant made a statement concerning the plaintiff to a third party. • The statement could damage the plaintiff's reputation in the community. • The defendant was at fault in making the statement. • The statement either caused the plaintiff economic loss or is actionable without proof of economic loss. (*McGunigle v. City of Quincy*, 132 F. Supp. 3d 155, 177 (D. Mass. 2015).) **SOL:** Three years (M.G.L. c. 260, § 4).	"[A] facility, home health agency or hospice program" that is asked to provide an employment reference is not liable for disclosing information about the employee's performance history unless the employer knowingly disclosed false information. (M.G.L. c. 111, § 72L1/2.) **Common law privilege:** Massachusetts courts recognize a conditional privilege for employers to publish defamatory information if "the information is reasonably related to the employer's legitimate business interest, . . . or if the publisher and the recipient share a common interest and the communication is of a kind reasonably calculated to protect or further it." The conditional privilege is lost if one of the following is true of the defendant: • They knew the information was false. • They had no reason to believe it was true. • They recklessly published the information unnecessarily, unreasonably, or excessively. (*Sklar v. Beth Israel Deaconess Med. Ctr.*, 797 N.E.2d 381, 388 (Mass. App. Ct. 2003).)
Michigan	**Elements:**	**Job reference immunity statute:** MCL 423.452, 423.506, and 423.507. An employer is immune from civil liability if in good faith it discloses

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	• A false and defamatory statement concerning the plaintiff.
	
	• An unprivileged communication to a third party.
	
	• Fault amounting to at least negligence on the part of the publisher.
	
	• Actionability of the statements irrespective of special harm or existence of special harm caused by the publication.
	
	(*Gonyea v. Motor Parts Fed. Credit Union*, 192 Mich. App. 74, 76-7 (1991)).)
	
	SOL: One year (MCL 600.5805(11)).
		"information relating to the individual's job performance that is documented in the individual's personnel file upon the request of the individual or his or her prospective employer." (MCL 423.452).
		
		Common law privilege:
		
		The employer is presumed to be acting in good faith unless there is preponderance of evidence that either:
		
		• The employer:
		  • knew the information disclosed was false or misleading; or
		  • disclosed the information with a reckless disregard for the truth.
		
		• The disclosure was specifically prohibited by a state or federal statute.
		
		(MCL 423.452.)
		
		Michigan courts provide a "qualified privilege allowing employers to make statements regarding former employees to prospective employers" (*Reschka v. Renaissance Commc'ns, Inc.*, 1991 WL 270193, at *5 (E.D. Mich. Apr. 3, 1991)).
		
		An employee may overcome the privilege by showing actual malice by the employer (*Wynn v. Cole*, 284 N.W.2d 144, 147 (Mich. App. 1979)).

Minnesota	**Elements:**	**Job reference immunity statute:** Minn. Stat. Ann.§ 181.933.

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	• The defamatory statement is communicated to someone other than the plaintiff. • The statement is false. • The statement tends to harm the plaintiff's reputation and to lower them in the estimation of the community. (*Chambers v. The Travelers Cos., Inc.*, 764 F. Supp. 2d 1071, 1083 (D. Minn. 2011).) **SOL:** Two years (Minn. Stat. Ann. § 541.07(1)).	Employers are not subject to libel, slander, or defamation actions for disclosing to an employee the truthful reason for the employee's termination (Minn. Stat. Ann.§ 181.933). **Common law privilege:** Minnesota courts "generally recognize a qualified privilege between former and prospective employers as long as the statements are made in good faith and for a legitimate purpose." To overcome this qualified privilege, an employee must prove common law malice by showing the employer "made the statement from ill will and improper motives, or causelessly and wantonly for the purpose of injuring the plaintiff." (*Stuempges v. Parke Davis & Co.*, 297 N.W.2d 252, 257 (Minn. 1980).)
Mississippi	**Elements:** • A false and defamatory statement concerning the plaintiff. • Unprivileged publication to a third party. • Fault amounting at least to negligence on the part of the publisher. • Either actionability of statement irrespective of special harm or existence of special harm caused by publication. (*Beauchene v. Miss. Coll.*, 986 F. Supp. 2d 755, 766 (S.D. Miss. 2013).)	**Job reference immunity statute:** Mississippi does not have a job reference immunity statute. **Common law privilege:** In Mississippi, "an employer enjoys a qualified privilege when commenting on personnel matters to those who have a legitimate and direct interest in the subject matter of the communication" (*Bulloch v. City of Pascagoula*, 574 So.2d 637, 642 (Miss. 1991)). However, "a qualified privilege does not protect a defamatory statement where there is excessive publication to persons not within the circle of those people who have a legitimate and direct interest in the subject matter of the communication" (*Eckman v.*

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	SOL: One year (Miss. Code Ann. § 15-1-35).	*Cooper Tire & Rubber Co.*, 893 So.2d 1049, 1053 (Miss. 2005)).
Missouri	**Elements:** The defendant: • Published a false statement that was harmful to the plaintiff and caused pecuniary loss. • Intended for the publication to cause harm or recognized that the publication would do so. • Knew the statement was false or acted in reckless disregard of its truth or falsity. (*Alticor, Inc. v. Nat'l Union Fire Ins. Co. of Pa.*, 916 F. Supp. 2d 813, 822 (W.D. Mich. 2013).) **SOL:** Two years (§ 516.140, RSMo).	**Job reference immunity statute:** § 290.152, RSMo. An employer may "respond in writing to a written request concerning a current or former employee from an entity or person which the employer reasonably believes to be a prospective employer of such employee" and disclose: • The nature and character of the employee's service. • The duration of employment. • The true cause, if any, for which the employee was discharged or voluntarily quit service. The information provided should be consistent with the reasons provided to the employee under Section 290.140 RSMo. The employer should send a copy of any letter provided under the statute to the current or former employee at the employee's last known address. An employer that provides information under the statute is immune from civil liability for any consequences of the response unless the "response was false and made with knowledge that it was false or with reckless disregard for whether such response was true or false." **Common law privilege:** Missouri's qualified privilege applies to an employer that makes comments regarding the character or

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		qualifications of an employee or former employee if those comments are made in good faith (*Fleischaker v. Headlee*, 99 S.W.3d 540, 545 (Mo. Ct. App. 2003)). To defeat the qualified privilege, a plaintiff must prove malice by showing "the statements were made with knowledge that they were false or with reckless disregard for whether they were true or false at a time when defendant had serious doubts as to whether they were true" (*Fleischaker*, 99 S.W.3d at 545-46).
Montana	**Defamation:** Mont. Code Ann. §§ 27-1-801 to 27-1-803 **Elements:** • The published material is false. • The defendants are chargeable with fault in the publication. • Injury to the plaintiff. (*Madison v. Yunker*, 589 P.2d 126, 133 (Mont. 1978).) **SOL:** Two years (Mont. Code Ann. § 27-2-204(3)).	**Job reference immunity statute:** Mont. Code Ann. § 27-1-804; see also Mont. Code Ann. §§ 39-2-801 and 39-2-802. Montana's statutory privilege allows for a "communication without malice to a person interested therein by one who is also interested or by one who stands in such relation to the person interested as to afford a reasonable ground for supposing the motive for the communication innocent or who is requested by the person interested to give the information" (Mont. Code Ann. § 27-1-804). Montana law prohibits an employer that discharges an employee from preventing or attempting to prevent, by word or writing of any kind, the employee from obtaining employment with another person. However, the employer "is not prohibited from informing by word or writing any person to whom the discharged person or employee has applied for employment a truthful statement of the reason for discharge." (Mont. Code Ann. § 39-2-802.)

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		However, that qualified privilege can be lost with proof that "the privilege has been abused by excessive publication, by use of the occasion for an improper purpose, or by lack of belief or grounds for belief in the truth of what was said" (*Rasmussen v. Bennett*, 741 P.2d 755, 758 (Mont. 1987)).
Nebraska	**Elements:** • A false and defamatory statement concerning the plaintiff. • An unprivileged publication to a third party. • Fault amounting to at least negligence on the part of the publisher. • Either actionability of the statement irrespective of special harm or the existence of special harm caused by the publication. (*Steinhausen v. HomeServices of Neb., Inc.*, 857 N.W.2d 816, 828 (Neb. 2015).) **SOL:** One year (Neb. Rev. St. § 25-208).	**Job reference immunity statute**: Neb. Rev. Stat. Ann. § 48-201. Nebraska law provides that an employer may disclose specified information about a current or former employee to a prospective employer upon receipt of written consent from the employee. The disclosing employer is presumed to be acting in good faith and immune from civil liability unless the presumption is rebutted by a preponderance of the evidence that: • The information was false. • The employer knew of its falsity or acted with malice or reckless disregard for the truth. **Common law privilege:** Nebraska courts recognize that statements by an employer about an employee are "privileged if made bona fide by one who has an interest in the subject matter to one who also has an interest in it or stands in such relation that it is a reasonable duty, or proper, for the writer to give the information" (*White v. Ardan, Inc.*, 430 N.W.2d 27, 32-33 (Neb. 1988)).

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		The qualified privilege can be lost if there is proof of malice, which the employee can show if "the publication was made with hate, spite or ill will" (*Molt v. Lindsay Mfg. Co.*, 532 N.W.2d 11, 18 (Neb. 1995)).
Nevada	**Elements:** • A false and defamatory statement by the defendant. • An unprivileged publication to a third person. • Fault, amounting to at least negligence. • Actual or presumed damages. (*Okeke v. Biomat USA, Inc.*, 927 F. Supp. 2d 1021, 1026 (D. Nev. 2013).) **SOL:** Two years (NRS §11.190(4)(c)).	**Job reference immunity statute:** NRS § 613.210(4). An employer may give "in writing, at the time the employee leaves or is discharged from the service of the employer, a truthful statement of the reason for such leaving of the service or discharge of that employee" and may give "any employee or former employee any statement with reference to any meritorious services which the employee may have rendered to that employer." **Common law privilege:** Nevada courts recognize a conditional privilege for employer statements about an employee "unless the privilege is abused . . . . A qualified or conditional privilege exists where a defamatory statement is made in good faith on any subject matter in which the person communicating has an interest or in reference to which he has a right or duty, if it is made to a person with a corresponding interest or duty" (*Bank of Am., Nev. v. Bourdeau*, 982 P.2d 474, 475-76 (Nev. 1999)). The qualified privilege may be lost if there is evidence of "bad faith, malice with spite, ill will, or some other wrongful motivation, and without belief in the statement's probable truth" (*Bank of Am., Nev.*, 982 P.2d at 476).

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New Hampshire	**Elements:** • The defendant failed to exercise reasonable care. • The defendant published a false and defamatory statement of fact about the plaintiff. • The statement was published to a third party. • No valid privilege applies to the communication. (*Pierson v. Hubbard*, 802 A.2d 1162, 1165 (2002).) **SOL:** Three years (N.H. RSA § 508:4(II)).	**Job reference immunity statute:** New Hampshire does not have a job reference immunity statute. **Common law privilege:** New Hampshire courts recognize a conditional privilege "when the circumstances induce a correct or reasonable belief that (a) facts exist which affect a sufficiently important interest of the publisher, and (b) the recipient's knowledge of the defamatory matter will be of service in the lawful protection of the interest," but " the defamatory communication must be made to a person whose knowledge of the defamatory matter because of his social or legal duty or his interest thereto is likely to prove useful in the protection of that interest" (*Jones v. Walsh*, 222 A.2d 830, 832 (N.H. 1966)). The immunity is lost where the privilege is "abused by an unnecessary and excessive publication" or where malice is found (*Jones*, 222 A.2d at 832).
New Jersey	**Elements:** • The assertion of a false and defamatory statement concerning another. • The unprivileged publication of that statement to a third party. • Fault amounting at least to negligence by the publisher. (*DeAngelis v. Hill*, 847 A.2d 1261, 1268 (2004).)	**Job reference immunity statute:** New Jersey does not have a job reference immunity statute. **Common law privilege:** New Jersey courts provide that an employer that "responds in good faith to the specific inquiries of a third party regarding the qualifications of an employee" has a qualified privilege (*Erickson v. Marsh & McLennan Co.*, 569 A.2d 793, 805 (1990)).

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	SOL: One year (N.J.S.A. 2A:14-3).	The privilege can be overcome by establishing with clear and convincing evidence "that the publisher knew the statement to be false or acted in reckless disregard of its truth or falsity" (*Erickson*, 569 A.2d at 806).
New Mexico	**Elements:** • The defendant published a defamatory factual communication concerning the plaintiff that was false. • The defendant either knew it was false, or was negligent in determining whether it was false. • The person receiving the communication understood that it was defamatory. • The plaintiff's reputation was injured or harmed as result of the published statement. (*Osuagwu v. Gila Reg'l Med. Ctr.*, 938 F. Supp. 2d 1180, 1197 (D.N.M. 2013).) **SOL:** Three years (NMSA 1978 § 37-1-8).	**Job reference immunity statute:** NMSA 1978 § 50-12-1. An employer that acts in good faith "[w]hen requested to provide a reference on a former or current employee . . . is immune from liability for comments about the former employee's job performance." The immunity does not apply if the information is one of the following: • Knowingly false or deliberately misleading. • Rendered with malicious purpose. • Violated any civil rights of the former employee. **Common law privilege:** New Mexico applies a qualified or conditional privilege that allows an employer to "make statements about its employee or former employee if for a proper purpose and to one having a legitimate interest in the statements" (*Baker v. Bhajan*, 871 P.2d 374, 378 (N.M. 1994)). However that conditional or qualified privilege may be lost if it is abused, which may arise out of one of the following:

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		• The publisher's lack of belief, or reasonable grounds for belief, in the truth of the alleged defamation. • The publication of the material for an improper use. • The publication to a person not reasonably necessary for the accomplishment of the purpose. • The publication not reasonably necessary to accomplish the purpose. (*Baker*, 871 P.2d at 379.)
New York	**Elements:** • A false statement about the plaintiff. • Published to a third party without authorization or privilege. • Through fault amounting to at least negligence on the part of the publisher. • The statement is either defamation per se or caused special damages. (*McNamee v. Clemens*, 762 F. Supp. 2d 584, 599-600 (E.D.N.Y. 2011).) **SOL:** One year (CPLR 215(3)).	**Job reference immunity statute:** New York does not have a job reference immunity statute. **Common law privilege:** Courts in New York have held that communications between an employee's former employer and prospective employer are protected by a qualified privilege for communications "addressing the employee's performance, his character, or the reasons for his termination." The qualified privilege "can only be overcome by a showing that the defamatory remarks were made with actual malice." To show actual malice under the common law, a plaintiff must prove spite, ill will, or "such culpable recklessness or gross negligence as constitutes a wanton disregard of the rights of others." (*Apionishev v. Columbia Univ.*, 2012 WL 208998, at *10 (S.D.N.Y. Jan. 23, 2012).)

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North Carolina	**Elements:** • The defendant caused injury to the plaintiff by making false, defamatory statements of or concerning the plaintiff. • The defamatory statement was published to a third person. (*Craven v. Cope*, 656 S.E.2d 729, 732 (N.C. 2008).) **SOL:** One year (N.C.G.S. § 1-54(3)).	**Job reference immunity statute:** N.C.G.S. § 1-539.12. An employer that "discloses information about a current or former employee's job history or job performance to a prospective employer of the current or former employee upon request of the prospective employer or upon request of the current or former employee is immune from civil liability and is not liable in civil damages for the disclosure or any consequences of the disclosure." The presumption is lost if the employee shows by a preponderance of evidence that both: • The information was false. • The employer knew or should have known that the information was false. **Common law privilege:** North Carolina also applies a qualified or conditional privilege for employer statements about employees where the "communication is one made with good faith on any subject matter in which the person communicating has an interest, or in reference to which he has a right or duty, if made to a person having a corresponding interest or duty on a privileged occasion and in a manner and under circumstances fairly warranted by the occasion and duty, right, or interest" (*Stewart v. Nationwide Check Corp.*, 182 S.E.2d 410, 415 (N.C. 1971)). The qualified privilege "may be lost by proof of actual malice on the part of the defendant" (*Smith-Price v. Charter*

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		Behavioral Health Sys., 595 S.E.2d 778, 783-84 (N.C. App. 2004)).
North Dakota	**Libel Elements:** • A false and unprivileged publication by writing, printing, picture, effigy, or other fixed representation to the eye. • The publication exposes any person to hatred, contempt, ridicule, or obloquy, or which causes the person to be shunned or avoided, or which has a tendency to injure the person in the person's occupation. (N.D.C.C. § 14-02-03.) **Slander Elements:** A false and unprivileged publication other than libel, which does one of the following: • Charges any person with a crime or with having been indicted, convicted, or punished for a crime. • Imputes to the person the present existence of an infectious, contagious, or loathsome disease. • Tends directly to injure the person regarding the person's office, profession, trade, or business, either by imputing: • to the person general disqualifications in those respects which the office or	**Job reference immunity statute:** N.D.C.C. § 34-02-18. Employers that disclose "information about a current or former employee's job performance to a prospective employer" are presumed to be acting in good faith and are immune from civil liability for the disclosure and consequences of the disclosure unless a lack of good faith is shown. The presumption of good faith may be rebutted by a preponderance of the evidence showing that the information disclosed was one of the following: • Knowingly false. • Disclosed with reckless disregard for the truth. • Deliberately misleading. • Rendered with malicious purpose. • Provided in violation of a nondisclosure agreement or was otherwise confidential according to applicable law. The state also has a statutory qualified privilege against liability for defamation based on "a communication, without malice, to a person interested therein by one who also is interested, or by one who stands in such relation to the person interested as to afford a reasonable ground for supposing the motive for the communication innocent, or who is requested by

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	other occupation peculiarly requires; or • something with reference to the person's office, profession, trade, or business that has a natural tendency to lessen its profits. • Imputes to the person impotence or want of chastity. • Causes actual damage. (N.D.C.C. § 14-02-04.) **SOL:** Two years (N.D.C.C. § 28-01-18(1)).	the person interested to give the information" (N.D.C.C. § 14-02-05(3)). This statutory qualified privilege applies to employer communications regarding employees because "generally communications by an employer concerning the conduct of an employee are, when necessary to protect interests of the employer, qualifiedly privileged." "A qualified privilege is abused if statements are made with actual malice, without reasonable grounds for believing them to be true, and on a subject matter irrelevant to the common interest or duty." (*Soentgen v. Quain & Ramstad Clinic*, P.C., 467 N.W.2d 73, 79 (N.D. 1991).)
Ohio	**Elements:** • A false and defamatory statement concerning another. • An unprivileged publication to a third party. • Fault amounting at least to negligence on the part of the publisher. • Either actionability of the statement irrespective of special harm or the existence of special harm caused by the publication. (*Osborn v. Knights of Columbus*, 401 F. Supp. 2d 822, 827 (N.D. Ohio 2005).) **SOL:** One year (Ohio R.C. 2305.11(A)).	**Job reference immunity statute:** Ohio R.C. 4113.71. An employer that is asked by a current or former employee or a current or former employee's prospective employer to disclose to a prospective employer "information pertaining to the job performance of that employee for the employer and who discloses the requested information to the prospective employer is not liable … for any harm sustained as a proximate result of making the disclosure or of any information disclosed." The immunity is lost if the employee can establish by a preponderance of the evidence that either: • The employer disclosed particular information with the knowledge that it was false, with the deliberate intent to mislead the prospective employer or

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		another person, in bad faith, or with malicious purpose. • The disclosure of particular information by the employer constitutes an unlawful discriminatory practice as described in Ohio R.C. 4112.02, 4112.021, or 4112.022. **Common law privilege:** Ohio courts apply a qualified privilege for communications "made in good faith on a matter of common interest, between an employer and an employee or between two employees concerning a third employee." The privilege does not apply if "the defamation is published (including spoken or written) to someone not within the qualified privilege or is done with actual malice." (*Stearns v. Ohio Sav. Ass'n*, 472 N.E.2d 372, 374-75 (Ohio App. 1984).)
Oklahoma	**Libel and Slander:** Okla. Stat. tit. 12, §§ 1441 and 1442 **Elements:** • Publishing of a defamatory falsehood concerning a private person (or a public official or figure regarding a purely private matter not affecting their official conduct, fitness, or capacity). • The utterer knows the statement is false; acts in reckless disregard of whether the statement is false or not; or acts negligently in failing to ascertain that the statement is false.	**Job reference immunity statute:** Okla. Stat. tit. 40, §§ 61 and 171. "An employer may disclose information about a current or former employee's job performance to a prospective employer . . . upon request of the prospective employer and with consent of the current or former employee, or upon request of the current or former employee." The employer is presumed to be acting in good faith and is immune from civil liability for the disclosure or any consequences of the disclosure, unless the presumption of good faith is rebutted. The lack of good faith can be proven by a preponderance of the evidence with a showing that the information disclosed was false, and the employer knew

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	(*Anson v. Erlanger Minerals & Metals, Inc.*, 702 P.2d 393, 396 (Okla. 1985).) **SOL:** One year (Okla. Stat. tit. 12, § 95(A)(4)).	it was false or acted with malice or reckless disregard for the truth. (Okla. Stat. tit. 40, § 61.)
Oregon	**Elements:** • The making of a defamatory statement. • Publication of the defamatory material. • A resulting special harm, unless the statement is defamatory per se and therefore gives rise to presumptive special harm. (*Nat'l Union Fire Ins. Co. v. Starplex Corp.*, 188 P.3d 332, 347 (Or. App. 2008).) **SOL:** One year (Or. Rev. Stat. § 12.120).	**Job reference immunity statute:** Or. Rev. Stat. § 30.178. An employer that "discloses information about a former employee's job performance to a prospective employer of the former employee upon request of the prospective employer or of the former employee is presumed to be acting in good faith and, unless lack of good faith is shown by a preponderance of the evidence, is immune from civil liability for such disclosure or its consequences." The good faith presumption may be rebutted by a showing that the information disclosed "was knowingly false or deliberately misleading, was rendered with malicious purpose or violated any civil right of the former employee protected under ORS chapter 659 or 659A." Additionally, an employee who is terminated may not bring a claim based on the fact that " in seeking subsequent employment the former employee will be forced to reveal the reasons given by the employer for the termination." **Common law privilege:** In Oregon, the common law rule recognizes that "a former employer has a qualified privilege to make defamatory communication about the character or conduct of his employees to present or prospective employers." The employee may prove that the

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		privilege was abused by proving that the employer acted with malice. (*Gordon v. Kleinfelder West, Inc.*, 2012 WL 844200, at *7 (D. Or. Mar. 12, 2012).)
Pennsylvania	**Elements:** • A defamatory communication. • Publication of a defamatory communication by the defendant. • The communication's application to the plaintiff. • Understanding by the reader or listener of the statement's defamatory meaning. • Understanding by the reader or listener that the statements refer to the plaintiff. (*Bennett v. Itochu Intern., Inc.*, 682 F. Supp. 2d 469, 476 (E.D. Pa. 2010).) **SOL:** One Year (42 Pa. C.S.A. § 5523(1)).	**Job reference immunity statute:** 42 Pa. C.S.A. § 8340.1. An employer is immune from civil liability when it "discloses information about a current or former employee's job performance to a prospective employer of the current or former employee, upon request of the prospective employer or the current or former employee." The employer "is presumed to be acting in good faith . . . unless lack of good faith is demonstrated by clear and convincing evidence." The presumption of good faith may be rebutted by establishing one of the following: • The employer knew the information disclosed was false or in the exercise of due diligence should have known it was false. • The employer knew the information as materially misleading. • The information was false and rendered with reckless disregard about the truth or falsity. • The disclosure of the information was prohibited by any contract, civil, common law, or statutory right of the employee. **Common law privilege:**

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		Pennsylvania courts have held that statements in a personnel file memorializing an investigation of alleged employee misconduct is not defamatory (*Tucker v. Merck & Co., Inc.*, 2003 WL 25592785 (E.D. Pa. May 2, 2003), *aff'd*, 102 F. App'x 247 (3d Cir. 2004)). Pennsylvania courts recognize "the defense of a conditional privilege whenever a prior employer evaluates a former employee at the request of a prospective employer." The privilege can be abused if the prior employer does one of the following: • Acts with malice or ill will. • Does not believe in the truth of the statements. • Has no reasonable ground for believing in the truth of the statements. • Makes a publication outside the scope of the privilege. (*Frymire v. PainWebber, Inc.*, 107 B.R. 506, 512 (E.D. Pa. 1989).)
Rhode Island	**Elements:** • A false and defamatory statement concerning another. • An unprivileged communication to a third party. • Fault amounting to at least negligence.	**Job reference immunity statute:** R.I. Gen. Laws § 28-6.4-1(c). "[A]n employer that, upon request by a prospective employer or a current or former employee, provides fair and unbiased information about a current or former employee's job performance is presumed to be acting in good faith and is immune from civil liability for the disclosure and the consequences of the disclosure." The presumption is

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	• Damages. (*Pelumi v. Gateway Healthcare*, 2013 WL 1363532, at *9 (D.R.I. Apr. 3, 2013).) **SOL:** • One year for slander (R.I. Gen. Laws § 9-1-14(a)). • Three years for libel (R.I. Gen. Laws § 9-1-14(b); *Sola v. Leighton*, 45 A.3d 502, 506 (R.I. 2012)).	rebuttable if the employee shows that the information is one of the following: • Knowingly false. • Deliberately misleading. • Disclosed for a malicious purpose. • Violative of the current or former employee's civil rights under the employment discrimination laws in effect at the time of the disclosure. **Common law privilege:** Rhode Island courts have held that an employer's communication to employees about the misconduct of a fellow employee may also be protected under the qualified privilege (*Ponticelli v. Mine Safe Appliance Co.*, 247 A.2d 303, 307 (R.I. 1968); *Nelson v. City of Cranston*, 116 F. Supp. 2d. 260, 268 (D. R.I. 2000)). The privilege does not extend to situations where the employer acts with malice, which can be shown by personal spite or ill will (*Ponticelli*, 247 A.2d at 308).
South Carolina	**Elements:** • A false and defamatory statement concerning the plaintiff. • An unprivileged publication to a third party. • Fault on the part of the publisher.	**Job reference immunity statute:** S.C. Code Ann. § 41-1-65. Employers are immune from civil liability for disclosing an employee's or former employee's dates of employment, pay level, and wage history to a prospective employer. An employer that responds in writing to a written request concerning a current employee or former employee from a prospective employer is immune from

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	• Either actionability of the statement irrespective of special harm or the existence of special harm caused by the publication. (*King v. Charleston Cty. Sch. Dist.*, 664 F. Supp. 2d 571, 586 (D.S.C. 2009).) **SOL:** Two years (S.C. Code Ann. § 15-3-550(1)).	civil liability for disclosing the following information: • Written employee evaluations. • Official personnel notices that formally record the reasons for separation. • Whether the employee was voluntarily or involuntarily released from service and the reason for the separation. • Information about job performance. This immunity does not apply where an employer knowingly or recklessly releases or discloses false information. **Common law privilege:** In addition to the protection afforded by the statute, the South Carolina courts have found that employers have a qualified privilege, based on a common interest, for statements in a personnel file (*Wright v. Sparrow*, 381 S.E.2d 503, 506 (S.C. Ct. App. 1989)). An employer's statements concerning an employee to a prospective employer are also protected by a qualified privilege. The privilege does not apply if the employee can prove that the employer acted with "actual malice," which requires showing that the employer acted with "ill will and consciousness of wrongdoing." (*Austin v. Torrington Co.*, 810 F.2d 416, 424-25 (4th Cir. 1987).)
South Dakota	**Libel Elements:**	**Job reference immunity statute:** SDCL 60-4-12 and 20-11-5.

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- A false and unprivileged publication by writing, printing, picture, effigy, or other fixed representation to the eye.
- The publication exposes any person to hatred, contempt, ridicule, or obloquy, or which causes them to be shunned or avoided, or which has a tendency to injure them in their occupation.

(SDCL 20-11-3.)

Slander Elements:

A false and unprivileged publication, other than libel, which does one of the following:

- Charges someone with crime, or with having been indicted, convicted, or punished for crime.
- Imputes to someone the present existence of an infectious, contagious, or loathsome disease.
- Tends directly to injure someone in respect to their office, profession, trade, or business, either by imputing:
  - to the person general disqualifications in those respects which the office or other occupation peculiarly requires; or
  - something with reference to their office, profession, trade, or business that

An employer is not held liable for disclosing "information about the job performance of an employee or former employee to a prospective employer of that person at the written request of the prospective employer or the employee or former employee" if the disclosure is made in good faith. The employer is presumed to be acting in good faith unless the lack of good faith is proven by clear and convincing evidence by showing that the employer either:

- Recklessly, knowingly, or with a malicious purpose, disclosed false or deliberately misleading information.
- Disclosed information subject to a nondisclosure agreement or information that is confidential under any federal or state law.

(SDCL 60-4-12.)

Common law privilege:

Statements to employees regarding the misconduct of a co-employee are protected by a qualified privilege (*Petersen v. Dacy*, 550 N.W.2d 91, 93-4 (S.D. 1996)).

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	has a natural tendency to lessen its profit. • Imputes to the person impotence or want of chastity. • Causes actual damage. (SDCL 20-11-4.) **SOL:** Two years (SDCL 15-2-15(1)).	
Tennessee	**Elements:** A party published a statement with either: • Knowledge that the statement is false and defaming to the other. • Reckless disregard for the truth of the statement, or with negligence in failing to ascertain the truth of the statement. (*Sullivan v. Baptist Mem'l Hosp.*, 995 S.W.2d 569, 571 (Tenn. 1999).) **SOL:** • Six months for slander (T.C.A. § 28-3-103). • One year for libel (T.C.A. § 28-3-104(a)(1)(A)).	**Job reference immunity statute:** T.C.A. § 50-1-105. Any employer that, on request by a prospective employer or a current or former employee, provides truthful, fair, and unbiased information about the job performance of the current or former employee is presumed to be acting in good faith and is granted a qualified immunity for the disclosure of the information and the consequences of the disclosure of that information. The presumption of good faith is rebutted upon a showing by a preponderance of the evidence that the information was: • Knowingly false. • Deliberately misleading. • Disclosed for a malicious purpose. • Disclosed in reckless disregard for its falsity or defamatory nature. • Violative of the employee's civil rights under current employment discrimination laws.

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Texas	**Libel:** Tex. Civ. Prac. & Rem. Code Ann. § 73.001. **Elements:** • The publication of a false statement to a third party. • The statement was defamatory concerning the plaintiff. • The defendant acted with the requisite degree of fault amounting to at least negligence. • Damages or defamation per se. (*In re Lipsky*, 460 S.W.3d 579, 593 (Tex. 2015).) **SOL:** One year (Tex. Civ. Prac. & Rem. Code Ann. § 16.002(a)).	**Job reference immunity statute:** Tex. Lab. Code Ann. §§ 52.031(d), 103.004; Tex. Civ. Stat. Ann. Art. 5196. An employer that discloses information about a current or former employee is immune from civil liability unless either: • The information disclosed was known by the employer to be false at the time made. • The disclosure was made with malice or in reckless disregard for the truth or falsity of the information disclosed. **Common law privilege:** A qualified privilege also attaches to statements "about an employee by their employer, made to a person having an interest or duty in the matter to which the communication relates." "Once the court finds a party has a qualified privilege, the plaintiff can overcome it only by a showing of actual malice," which means publication of a statement with knowledge that it is false or with reckless disregard for whether it is false." (*Schauer v. Mem'l Care Sys.*, 856 S.W.2d 437, 449 (Tex. App. 1993).)
Utah	**Libel and slander:** Utah Code § 45-2-2 **Elements:** • The defendant published the statements (in print or orally).	**Job reference immunity statute:** Utah Code § 34-42-1. An employer is not liable for providing information in good faith about the job performance, professional conduct, or evaluation of a former or current employee to a prospective employer where that information is requested

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	• The statements were false. • The statements were not subject to privilege. • The statements were published with the requisite degree of fault. • The statements resulted in damages. (*Oman v. Davis Sch. Dist.*, 194 P.3d 956, 972 (Utah 2008).) **SOL:** One year (Utah Code § 78B-2-302(4)).	by the employee or the prospective employer. The employer is presumed to be acting in good faith unless the presumption is rebutted upon showing by clear and convincing evidence that the employer disclosed the information with either: • Actual malice, meaning knowledge that the information was false, or with reckless disregard of whether the information was false. • The intent to mislead. **Common law privilege:** Utah has a qualified privilege that "protects an employer's communication to employees and to other interested parties concerning the reasons for an employee's discharge." The employee can overcome the privilege by proving that the employer abused the privilege by acting with malice, publicizing the defamatory material beyond those who had a legally justified reason for receiving it, or making statements knowing they are false or with reckless disregard of their falsity. (*Nelson v. Target Corp.*, 334 P.3d 1010, 1018 (Utah App. 2014).)
Vermont	**Elements:** • A false and defamatory statement concerning another. • Some negligence or greater fault in publishing the statement. • Publication to a third person.	**Job reference immunity statute:** Vermont does not have a job reference immunity statute. **Common law privilege:** Vermont common law recognizes a conditional privilege for protecting legitimate business interests. However,

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	• Lack of privilege in the publication. • Special damages, unless actionable per se. • Some actual harm so as to warrant **compensatory damages**. (*Lent v. H.J. Huntoon*, 470 A.2d 1162, 1168 (Vt. 1983).) **SOL:** Three years (12 V.S.A. § 512(3)).	the privilege is lost if the plaintiff shows with clear and convincing evidence that the defendant made the statements with malice. Malice is inferred when a defendant knows that its statement is false or it acts with reckless disregard of the truth of its statement. (*Marcoux-Norton v. Kmart Corp.*, 907 F. Supp. 766, 779-80 (D. Vt. 1993).)
Virginia	**Elements:** • Publication. • False and defamatory statement. • Statement concerns the plaintiff. (*Jarrett v. Goldman*, 2005 WL 1323115, at *6 (Va. Cir. Ct. May 31, 2005).) **SOL:** One year (Va. Code Ann. § 8.01-247.1).	**Job reference immunity statute:** Va. Code Ann. § 8.01-46.1. An employer that furnishes information about a person's professional conduct, reasons for separation, or job performance to a prospective or current employer is immune from civil liability for furnishing the information if the employer is not acting in bad faith. The employer is presumed to be acting in good faith unless the presumption is rebutted upon showing by clear and convincing evidence that the employer disclosed the information with one of the following: • Knowledge that it was false. • Reckless disregard for whether it was false. • The intent to deliberately mislead. **Common law privilege:**

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		Statements to an employee regarding the reasons for discharge, including a termination letter in the employee's personnel file documenting these reasons, are subject to a qualified privilege in the absence of malice (*Southeastern. Tidewater Opportunity Project, Inc. v. Bade*, 435 S.E.2d 131 (Va. 1993)). Virginia recognizes a qualified privilege for statements made between co-employees and employers in the course of employee disciplinary or discharge matters, as well as statements in personnel files. An employee can overcome the privilege by showing that the employer had a sinister or corrupt motive or that the communication was made with such gross indifference and recklessness as to amount to a wanton or willful disregard of the rights of the employee. (*Shaheen v. The Wellpoint Cos., Inc.*, 2012 WL 3140306, at *3 (4th Cir. Aug. 3, 2012).)
Washington	**Elements:** • Falsity. • An unprivileged communication. • Fault. • Damages. (*Klontz v. Puget Sound Power & Light Co.*, 951 P.2d 280, 281 (Wash. App. 1998).) **SOL:** Two years (RCW 4.16.100(1)).	**Job reference immunity statute:** RCW 4.24.730; Wash. Admin. Code 296-126-050. An employer that discloses information about a current or former employee to a prospective employer or employment agency, at the request of the prospective employer or employment agency is presumed to be acting in good faith and is immune from civil and criminal liability for the disclosure if the information relates to: • The employee's ability to perform the job.

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		• The employee's diligence, skill, or reliability in carrying out job duties. • Illegal or wrongful acts committed by the employee when related to the job duties. The presumption of good faith may be rebutted only upon a showing by clear and convincing evidence that the information disclosed was knowingly false, deliberately misleading, or made with reckless disregard for the truth. **Common law privilege:** Statements by an employer in an employee's personnel file are also conditionally privileged (*Lillig v. Becton-Dickinson*, 717 P.2d 1371, 1373-74 (Wa. 1986)). Washington common law holds that a former employer's communication with a prospective employer about an employee is protected by a qualified privilege based on common interest. The employee can defeat the privilege upon showing by clear and convincing evidence that the communication was made with knowledge of its falsity or with reckless disregard of its truth or falsity. (*Wiseman v. Wendel*, 2006 WL 302763, at *4 (Wash. Ct. App. Feb. 9, 2006).)
West Virginia	**Elements:** • Defamatory statement. • A nonprivileged communication to a third party.	**Job reference immunity statute:** W. Va. Code § 55-7-18a. Employers are immune from liability for disclosing adverse job-related information regarding a former or current employee to a prospective employer. The disclosure must be in

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	• Falsity. • Reference to the plaintiff. • At least negligence on the part of the publisher. • Resulting injury. (*Greenfield v. Schmidt Baking Co., Inc.*, 485 S.E.2d 391, 399 (W. Va. 1997).) **SOL:** One year (W. Va. Code § 55-2-12(c); *Herbert J. Thomas Mem'l Hosp. Ass'n v. Nutter*, 795 S.E.2d 530, 545 (2016)).	writing and a copy must be provided to the employee at the time of the disclosure. The employer is presumed to be acting in good faith unless the presumption of good faith is rebutted on a showing by a preponderance of evidence that the information disclosed was: • Knowingly false. • Disclosed with reckless disregard for the truth. • Deliberately misleading. • Rendered with malicious purpose toward the former or current employee. • Disclosed in violation of a nondisclosure agreement or application law.
Wisconsin	**Elements:** • A false statement. • The statement is communicated to a third person. • The statement tends to harm the reputation of the subject to lower that person in the estimation of the community or deters others from associating or dealing with him. (*Rumpel v. Bank of Buffalo*, 1992 WL 50176, at *2 (Wis. Ct. App. Jan. 22, 1992).)	**Job reference immunity statute:** Wis. Stat. §§ 134.02(2)(a) and 895.487. An employer that "on the request of an employee or a prospective employer of the employee, provides a reference to that prospective employer is presumed to be acting in good faith and, unless lack of good faith is shown by clear and convincing evidence, is immune from all civil liability that may result from providing that reference." The employer is presumed to be acting in good faith when providing the reference unless the employee can show with clear and convincing evidence that the employer did one of the following:

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	SOL: Three years (Wis. Stat. § 893.57).	• Knowingly provided false information. • Made the reference maliciously. • Made the reference in violation of state anti-discrimination law. (Wis. Stat. § 895.487.) **Common law privilege:** Wisconsin courts recognize a qualified or conditional privilege for an employer's communications to prospective employers regarding an employee. To defeat the privilege, the plaintiff must prove that the defendant was motived by "express malice" or ill will, envy, spite, or revenge. (*Calero v. Del Chem. Corp.*, 228 N.W.2d 737, 744 (1975).)
Wyoming	**Elements:** • The defendant made a false and defamatory communication concerning the plaintiff. • The defendant made an unprivileged publication to a third party. • At the time of the publication, the defendant knew the communication was false, or the defendant acted in reckless disregard of whether the statement was false, or the defendant acted negligently in failing to ascertain whether the communication was false.	**Job reference immunity statute:** Wyo. Stat. Ann. § 27-1-113. An employer that "discloses information about a former employee's job performance to a prospective employer or to an employer of the former employee is presumed to be acting in good faith. Unless lack of good faith is shown by a preponderance of evidence, the employer is immune from civil liability for the disclosure or for the consequences resulting from the disclosure." The presumption of good faith can be rebutted by showing that the information disclosed was knowingly false, or deliberately misleading, or rendered with malicious purpose. (Wyo. Stat. Ann. § 27-1-113.)

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	(*Thomas v. Sumner*, 341 P.3d 390, 402 (Wyo. 2015).) **SOL:** One year (Wyo. Stat. Ann. § 1-3-105(a)(v)(A)).	

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